Plymouth Corporation Act 1971

CHAPTER xxi

ARRANGEMENT OF SECTIONS

ELIZABETH II

1971 CHAPTER xxi

An Act to confer powers upon the lord mayor, aldermen and citizens of the city of Plymouth with regard to finance; and for other purposes.

[12th May 1971]

WHEREAS—

(1) The city of Plymouth (in this Act called "the city") is a county borough under the management and local government of the lord mayor, aldermen and citizens of the city (in this Act called "the Corporation"):

(2) It is expedient to make further and better provision with respect to the local government of the city and the finances of the Corporation:

(3) It is expedient that the other provisions contained in this Act be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed: 1933 c. 51.

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and collective titles.

1.—(1) This Act may be cited as the Plymouth Corporation Act 1971.

(2) The Plymouth Corporation Acts 1915 to 1950 and this Act may be cited jointly as the Plymouth Corporation Acts 1915 to 1971.

Interpretation.

2.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them:—

1933 c. 51.

" the Act of 1933 " means the Local Government Act 1933;

1937 c. 68.

" the Act of 1937 " means the Local Government Superannuation Act 1937;

" the city " means the city of Plymouth;

" the Corporation " means the lord mayor, aldermen and citizens of the city;

" the council " means the council of the city;

" enactment " means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

" financial year " means a period of twelve months ending on 31st March;

" general rate " means the general rate of the city;

1967 c. 9.

" gross rate income " means the gross rate income as used in the determination of the product of a rate of one new penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

1952 c. 55.

" magistrates' court " has the same meaning as in the Magistrates' Courts Act 1952;

" revenues " has the same meaning as in section 218 of the Act of 1933;

" signature " includes a facsimile of a signature by whatever process reproduced;

" the superannuation fund " means the superannuation fund maintained by the Corporation under Part I of the Act of 1937.

(2) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any enactment including this Act.

3.—(1) In addition to the modes of borrowing prescribed by the Act of 1933 or any local enactment in force in the city, the Corporation may raise money— **Power to raise money by bills.**

(*a*) for any purpose for which the Corporation are authorised to borrow;

(*b*) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Corporation may properly be applied;

by means of bills (to be called " Plymouth Corporation bills ", in this section referred to collectively as " bills " and separately as a " bill ") subject to, and in accordance with, the following provisions:—

(i) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:

(ii) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:

(iii) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Corporation may determine:

(iv) Bills shall be issued under the authority of a resolution passed by the council, and shall bear the signature of the treasurer of the city or of some other person authorised by the Corporation:

(v) The Corporation may make regulations providing for—

(A) the preparation, form, mode of issue, payment and cancellation of bills;

(B) the issue of new bills in lieu of bills defaced, lost or destroyed;

(C) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and

(D) the giving of a proper discharge on the payment of a bill:

(vi) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

(vii) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

(A) the sum of one million, five hundred thousand pounds; or

(B) one-fifth of the amount of the estimated gross rate income of the city during the then current financial year;

whichever is the greater:

(viii) Subject to the provisions of the last preceding paragraph, the Corporation may renew a bill at maturity:

(ix) The Corporation may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Corporation to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

1915 c. lxix.

(2) Section 200 (Provisions as to raising money by bills) of the Plymouth Corporation Act 1915 is hereby repealed.

Power to raise money by bearer bonds.

4. In addition to any other method by which the Corporation may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to raise money abroad.

5.—(1) Any method by which the Corporation are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction).

(4) Nothing in this section shall be taken as exempting the Corporation from the provisions of any order under section 1 of the Borrowing (Control and Guarantees) Act 1946. 1946 c. 58.

6.—(1) In its application to the Corporation subsection (3) of section 21 of the Act of 1937 shall have effect as if for the obligation to invest as mentioned in that subsection, moneys forming part of but not for the time being required to meet payments to be made out of the superannuation fund, there were substituted an obligation to invest such moneys as follows, namely:— Investment of superannuation fund.

(a) in or upon any investments for the time being authorised by law for the investment of trust funds; or

(b) in or upon any of the stocks, funds or securities of any dominion, commonwealth, union, dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part of any such dominion, commonwealth, union, dependency or colony; or

(c) in or upon any of the stocks, bonds, mortgages or securities of any municipality or county or district council, or local or public authority or board, in the United Kingdom or in any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or of the legislature concerned to issue the same; or

(d) in or upon any stocks, shares, bonds, mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the United Kingdom Government or by the government of any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid; or

(e) in or upon any of the stocks, funds or securities of the government of any foreign country or state; or

(f) in or upon the bonds, debentures, debenture stock, convertible debenture stock, obligations or securities of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world; or

(g) in or upon any guaranteed, preference or ordinary stock or shares or any preferred or deferred or other stock or shares of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world, being stock or shares which at the time of making the investment are quoted on any recognised stock exchange or similar institution; or

(*h*) in the purchase or taking a lease, whether alone or jointly or in common with any other person, of immovable property of any tenure or kind in the United Kingdom (elsewhere than in the city), the Isle of Man or the Channel Islands, or of any share or interest in such immovable property including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement; or

(*i*) in the advance of money upon the security of—

(i) immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or

(ii) any legal estate or interest in immovable property comprised in a building agreement as specified in paragraph (*h*) of this subsection;

and in any such case, whether the security be taken by a separate and distinct mortgage or security made exclusively to the Corporation, or by a mortgage or security made jointly to the Corporation and any other person; or

(*j*) in undertaking or financing, whether alone or jointly with any other person—

(i) the erection of a new building or the improvement or extension of an existing building; or

(ii) building operations or other development;

on land outside the city—

(A) belonging to the Corporation or to any other person; or

(B) which is, or will be, held jointly by the Corporation and any other person; or

(*k*) upon the security of freehold or leasehold ground rents, land charges or rentcharges;

with power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that—

(i) the investment of such moneys as aforesaid in any investment of the nature specified in paragraph (*g*), (*h*) or (*j*) of this subsection shall be subject to the qualification that no investment shall be made at any time when the value of all the investments made under the said paragraphs (*g*), (*h*) and (*j*) which form part of the superannuation fund equals or exceeds 75 per cent. of the total value of all the investments which form part of that fund;

(ii) so long as the value of all the investments made under paragraphs (*h*) and (*j*) of this subsection which form part of the superannuation fund is equal to or greater than one-quarter of the value of all the investments which form part of the superannuation fund, no further investment shall be made under the said paragraph (*h*) or (*j*).

(2) For the purposes of the foregoing subsection the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(3) For the purposes of the foregoing provisions of this section an investment in the units of a unit trust scheme or in participation certificates or in any form of participation under any trust or scheme established in the United Kingdom or elsewhere having the effect of enabling persons to participate in the profits and income arising from the acquisition, holding, management or disposal of such securities or of such property or interest in property as are specified in subsection (1) of this section shall be regarded as an investment in the securities or property in question.

(4) All costs, charges and expenses incurred by the Corporation in investing moneys forming part of the superannuation fund or otherwise in relation thereto may be paid by the Corporation out of the superannuation fund.

(5) In this section—

"participation certificate" means any document conferring upon the holder the right to participate in (or constituting evidence of the right of the holder to participate in) the profits or income arising from the acquisition, holding, management or disposal of a particular investment specified or described in the document;

"quoted on any recognised stock exchange or similar institution" in its application to stock or shares not registered in the United Kingdom means, in relation to a security, that the security has been granted an official quotation or is listed on a recognised security market or that dealing prices on such a market in respect of that security are published not less frequently than once a week;

"recognised security market" in its application to stock or shares not registered in the United Kingdom means a stock exchange, an association of stock and share dealers or an over-the-counter market recognised as a market or association in which dealings in the country concerned normally take place;

"recognised stock exchange" in its application to the United Kingdom means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act 1958;

1958 c. 45.

"securities" includes shares, debentures, treasury bills and tax reserve certificates.

Investment of other funds of Corporation.

7. Notwithstanding anything in any other enactment the moneys standing to the credit of any capital, repairs, reserve, renewals, insurance, contingencies or other similar fund established by the Corporation other than funds applicable wholly or partly for the redemption of debt, may be invested in similar manner and subject to the same restrictions as money of the superannuation fund.

Powers of Act to be cumulative.

8. All powers and duties conferred or imposed by this Act shall be deemed to be in addition to and not in derogation of any other powers and duties conferred or imposed by any enactment, law or custom, and subject to any express provision of this Act all such other powers and duties may be exercised and shall be performed in the same manner as if this Act had not been passed.

Saving for provisions of Exchange Control Act 1947.

1947 c. 14.

9. Nothing in this Act shall be taken as exempting the Corporation from the provisions of the Exchange Control Act 1947.

Recovery of water rates and charges.

10. Notwithstanding the provisions of any enactment any water rates and charges collected by the Corporation on behalf of any water undertaking shall (without prejudice to any other right or remedy of such undertaking) be recoverable by the Corporation in a magistrates' court together with and in the same manner and subject to the same provisions as the general rate.

Protection of members and officers of Corporation from personal liability.

1875 c. 55.

11. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

12.—(1) The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act, shall be paid by the Corporation and the Corporation shall have power without the consent of any sanctioning authority to borrow the sum required for the payment thereof and shall repay the sum so borrowed within such period as they may determine not exceeding five years from the date of borrowing. Costs of Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of the money borrowed shall as respects that money be the fixed period for the purpose of the said Part IX.

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